Agreement for Services: Sections Five and Six (replacement draft)

James's MOU draft: Replaces Section Five ("Confidential Information") and Section Six ("Data Access and Sharing") of the CHSS Accelerator Agreement for Services draft (Year 0 Readiness + Year 1 Implementation). Section numbering, party names ("CHSS," "Organization," "District"), and defined-term style follow that document. **Conversation:** James (10/26): the existing data section "needs to be entirely trashed and redone"; what is needed is to "state our expectations as much as anything else." Jonah: the deliverable is "what they're committing to give, what we're committing to take care of, and why this is worth it." **Drafting choice:** Three things in the current draft conflict with Navigator and will be marked up by any privacy officer: it describes the feed as "de-identified individual student data" while Navigator shows names to school teams; it keeps identifiable data for three years after termination; and it has no FERPA basis, breach, subprocessor, location, or audit terms. This draft fixes all three.

Drafting note: bracketed fields are completed per district. Conforming edits to Sections Three and Eight are listed at the end.

Section Five: Student Data Privacy and Security

Drafting choice: Section Five becomes the short, binding statement of the relationship and points to the appendix (or the NDPA) for the detailed terms, so the body of the agreement stays readable for the academic signers.

5.1 Purpose and relationship

FERPA: School official exception, 34 C.F.R. § 99.31(a)(1)(i)(B): a contractor or other party to whom the institution has outsourced services may receive education records without consent if it performs a service the institution would otherwise use employees for, is under the institution's direct control as to use and maintenance, and is subject to the redisclosure limits of § 99.33(a). **Luke's experience:** On the 10/26 call: "there's a legitimate educational reason for you all to be looking at this data," and the coach already hears student names in every kid-talk today; the agreement "operationalizes" a threshold the district has already crossed. **AFUHSD precedent:** Luke's own test from the 360training review (Jan 2026): a partner is a FERPA school official when it is "an integrated part of learning" that the district facilitates, versus a direct student–vendor relationship like ACT or ASVAB. **AFUHSD precedent:** The sentence on parental consent is deliberate. AFUHSD's GCU priority-acceptance program (2025) had a board-approved agreement but no scalable consent mechanism and produced about one student in year one. Districts should not go looking for a consent process the school official exception doesn't require. **af-dpa:** knowledge/law/ferpa.md (captured 2026-10-26): PTAC adds a fourth element, that the party "has been determined to meet the criteria set forth in the school's or district's annual notification of FERPA rights for being a school official" (§ 99.7(a)(3)(iii)); many districts' annual notices name only employees and board contractors. The last sentence below asks the District to close that gap. The studies exception (§ 99.31(a)(6)) is the alternative basis for evaluation work, but it requires destruction when the study ends, which is why evaluation here rests on de-identified data instead.

The District and the Center for High School Success ("CHSS"), a program of Stand for Children Leadership Center, Inc. ("Organization"), a nonprofit organization exempt under section 501(c)(3) of the Internal Revenue Code, share student data under this Agreement so that CHSS can provide ninth grade success coaching, the CHSS Navigator platform, and on-track analytics to the District's participating schools (the "Services").

In providing the Services, CHSS and Organization act as a "school official" with a "legitimate educational interest" under the Family Educational Rights and Privacy Act (FERPA), 34 C.F.R. § 99.31(a)(1)(i)(B). CHSS performs an institutional service for which the District would otherwise use its own employees, is under the District's direct control with respect to the use and maintenance of education records, and will not redisclose student data except as this Agreement permits. The District's disclosure of education records to CHSS for the Services does not require parental consent under FERPA when the conditions in this Section are met; notice and consent requirements that apply to the screeners are governed by Section 6.7. The District will confirm that its annual notification of FERPA rights includes, among the criteria for school officials with a legitimate educational interest, contractors and organizations to which the District has outsourced institutional services.

5.2 Governing privacy terms

> **Lewis County:** A partner district in Missouri has already routed CHSS through its consortium (TEC via MOREnet) and the SDPC Resource Registry to obtain the NDPA. Districts in Arizona, Ohio, California, Massachusetts, Utah, and Missouri have state NDPA versions; this clause lets each district choose its instrument without renegotiating. **SDPC NDPA:** The NDPA is the Student Data Privacy Consortium's national agreement; state alliances publish versions with a state exhibit. AFUHSD signs vendors onto the Arizona Standard Version 1.2. **District lens:** Counsel's objection to an earlier draft: "If we sign both documents, 'the document the district signed controls' does not tell us which document controls." Now one rule, stated the same way here and in Appendix A.18: the state NDPA controls. **af-dpa:** knowledge/sdpc/exhibit-e-general-offer.md: Exhibit E extends a signed NDPA's privacy terms to any other district in the same state that accepts and delivers notice; it runs three years from the provider's signature. **District lens:** "Section 5.2 allows the NDPA instead of or in addition to Appendix A, but the election form no longer offers 'both.' Which custom commitments survive when we elect the NDPA?" Now one model: Appendix A always applies; the NDPA controls on conflict; the custom commitments are listed as surviving supplements. **Conversation:** James (10/26): "we are going to have to sign their data agreement. There's no negotiation there." The commitment to sign districts' agreements, including the NDPA, has a record. The Exhibit E general offer is referenced here only as something the District may accept where it exists (Decisions, O12). **Luke's decision:** See Decisions, M6.

The CHSS Data Privacy and Security Appendix (Appendix A) applies to all handling of student data under this Agreement in every case. At the District's election, recorded in Exhibit D-3, the Parties will also execute the Student Data Privacy Consortium's National Data Privacy Agreement (NDPA) in the version adopted in the District's state, or, where CHSS has executed the NDPA with another district in the same state and signed a General Offer of Privacy Terms (NDPA Exhibit E), the District may accept that offer and deliver notice of acceptance. Where the NDPA has been executed or Exhibit E accepted, the NDPA and its state exhibits control as to any conflict with Appendix A or with any other provision of this Agreement concerning student data, and Appendix A continues to apply as a supplement for every matter the NDPA does not address, including Sections A.4(d) and (f), A.6, A.8, A.12, A.14, A.15, and A.16. If Appendix A conflicts with the body of this Agreement, Appendix A controls as to student data.

5.3 Definitions

> **FERPA:** De-identified Data tracks 34 C.F.R. § 99.31(b)(1): records may be released without consent after removal of all personally identifiable information, provided the institution has made a reasonable determination that a student's identity is not personally identifiable, taking into account other reasonably available information. **James's MOU draft:** "Confidential Information" is retained from the current Section Five and narrowed to the defined terms below. **Conversation:** "Cohort"

implements the 10/23 decision with James: start with ninth grade and "grow the dashboard each year after that" so the cohort can be followed into 10th grade, CTE sequences, and graduation.

- **Student Data** means any information from the District's education records that identifies, or could be used to identify, a student, including the elements listed in Exhibit D-1. Student Data is Confidential Information.
- **Screening Data** means responses and scores from the CHSS Belonging Screener and Skills Screener administered to students at participating schools. Screening Data is Student Data.
- **De-identified Data** means Student Data or Screening Data from which all personally identifiable information has been removed in accordance with 34 C.F.R. § 99.31(b)(1), such that a reasonable person in the school community who does not have personal knowledge of the relevant circumstances could not identify the student.
- **Aggregate Data** means statistics computed across groups of students, with any group smaller than ten students suppressed.
- **Navigator** means the CHSS web platform through which the Services are delivered.
- **School Team** means the District employees at a participating school who are responsible for ninth grade students, as designated by the District.
- **Coach** means the CHSS employee assigned to support a participating school.
- **Cohort** means the ninth grade students enrolled at a participating school in a school year in which the Services are provided.

5.4 Who may see student-level data

Luke's decision: Option B is "in-session view," not "aggregate only." A coach who watches the team lead's student-level screen is receiving identifiable records; an earlier draft called that "aggregate only," which was wrong. See Decisions, M1. **FERPA:** "Disclosure" (34 C.F.R. § 99.3) means permitting access to or release of PII by any means, including oral, written, or electronic; the school official exception (§ 99.31(a)(1)(i)(B)) authorizes the access when its conditions are met, whether or not the recipient holds credentials. § 99.31(a)(1)(ii): the institution must use reasonable methods to ensure school officials access only records in which they have a legitimate educational interest. **District lens:** A privacy officer's first objection to an earlier draft: "You say the coach cannot see student-level data, then arrange for the coach to watch the student-level dashboard on a shared screen. That is still disclosure." And a CTO's: "Somebody must administer Salesforce, troubleshoot imports, and investigate incidents." Both are answered below. **Conversation:** 10/26: Jonah wanted the less intrusive approach with screen-share and one consistent protocol; James: ask for A and let their lawyers say no; Luke: the coach already hears names in every kid talk, so the agreement "operationalizes" a threshold the district has already crossed, and the Phoenix Union experience with Teach For America mentors was six months of fingerprint and onboarding fights. **AFUHSD precedent:** Luke's review of the renewed TFA template (Feb 2026): "as long as it's just the Coach that's going to see the data then it's covering it, acknowledging them as FERPA proxies." One named role, acknowledged as a school official, is the basis for both options. **District lens:** A California district technology and privacy lead (10/27 call) on outside partners who work with students' data: "there's always some kind of an agreement. Nobody gets access without an agreement." County volunteers see student profiles under a special MOU vetted by purchasing and business services; graduation-support partners get data "we pull for them," with no credentials of their own. Option B is that pattern. The same lead noted that personnel physically in classrooms may also need the district's volunteer clearance or fingerprinting, regardless of the contract.

School Team members designated by the District may view student-level records, including names, for their school, to identify students, plan interventions, and monitor progress.

CHSS program, research, and leadership staff, and Organization staff, may view only De-identified Data and Aggregate Data, except that CHSS technical and security personnel designated under Appendix A.7 may access Student Data on a minimum-necessary basis to administer the platform, resolve data-feed problems, and investigate incidents, with every such access logged.

Coaches. In both options the Coach assigned to a participating school is a CHSS employee acting as a school official under Section 5.1, bound by Appendix A, trained annually in FERPA and privacy, under a confidentiality obligation, and subject to the personnel requirements in Appendix A.7. The District may revoke a Coach's access at any time by written notice. *One of the following applies; the District's election is recorded in Exhibit D-3.*

> **Option A (standing access).** The Coach holds a Navigator login and may view student-level records, including names, for the schools the Coach supports, with every access logged.

> **Option B (in-session view; default).** The Coach holds no Navigator login and no standing access to student-level records. The Coach views student-level records, including names, only during a coaching session, on the screen of a School Team member who is logged into Navigator, and does not retain, copy, or record them. Outside sessions the Coach works from Aggregate Data. CHSS keeps a record of each such session (Coach, school, School Team member, date, purpose) and provides it to the District on request; Navigator's own logs record the School Team member's access. The District may elect by written notice to convert a Coach to Option A for a school.

5.5 Permitted use and restrictions

James's MOU draft: Builds on the current Section Five "Permitted Use and Restrictions" (use solely to perform services and evaluation; access limited to those performing work; no third-party disclosure). **SDPC NDPA:** Mirrors NDPA Article IV prohibitions: no sale, no targeted advertising, no building a profile except to further the educational purpose. **Conversation:** James (10/23): Stand is both a 501(c)(3) and a 501(c)(4), "so there doesn't actually have to be something wrong for people to raise a stink." The advocacy clause answers the question before a board member asks it. **Drafting choice:** The evaluation sentence is where the current draft's "Whenever practicable, CHSS will use aggregated or de-identified data" becomes a rule rather than an aspiration: identifiable data for the Services only; de-identified and aggregate data for evaluation.

CHSS and Organization will use Student Data solely to provide the Services to the District. CHSS and Organization will not: (a) sell, rent, or trade Student Data; (b) use Student Data for targeted advertising or marketing to students, parents, or staff; (c) build a profile of a student for any purpose other than the Services; (d) use Student Data in any advocacy, lobbying, political, or fundraising activity of Organization or any affiliated entity, including any entity organized under section 501(c)(4); or (e) disclose Student Data to any third party other than a subprocessor listed in Appendix A, except as required by law.

CHSS may create and retain De-identified Data and Aggregate Data to evaluate and improve the program, including following Cohort outcomes over time. CHSS will not attempt to re-identify

any student and will not publish any result that could identify a student or, without the District's written consent, the District.

5.6 Return and destruction

> **Columbus City DSA:** "Company shall destroy or return to the District all educational records created, received, or maintained pursuant to the contract/agreement within ninety days" of termination. Term is co-terminus with the contract and ends only when data is destroyed or returned. **SDPC NDPA:** Article IV "Disposition of Data": dispose of or return data within sixty days of written request on an agreed schedule; the duty does not extend to de-identified data; the LEA may use the Directive for Disposition of Data form (Exhibit D) with no further notice. **AFUHSD precedent:** Luke rejected "may retain copies in the ordinary course of business" in a 2026 dual-enrollment review and pasted the NDPA disposition clause in its place. **James's MOU draft:** Replaces the current draft's three-year post-termination retention, which no partner district on the call list will accept. **Conversation:** James (10/23): CHSS is "perfectly okay to delete the de-identified student data" but wants to keep that "Agua Fria High School went from 60% on track to 72%." Luke: "That's fine. That's a different thing." **af-dpa:** knowledge/sdpc/article-crosswalk-v1-2-to-v2-1.md: NDPA v1.2 IV.6 is sixty days from a written request and, at termination, "after providing the LEA with reasonable prior notice" with no deadline; v2 4.6 is "within sixty (60) days of termination." Sixty days at termination is used here so the clause satisfies v2, Columbus (ninety), and the stricter districts (Beaverton: sixty days from expiration). knowledge/practice/vendor-negotiation.md: backups "expire on the vendor's documented rotation," with "an outside date" and "certification when the outside date passes."

On the District's written directive at any time, which may be given on the form in Exhibit D-4 or, where the NDPA applies, on NDPA Exhibit D, CHSS and Organization will return or destroy the Student Data specified within sixty days, on a schedule agreed with the District. Within sixty days after this Agreement ends, CHSS and Organization will destroy or return to the District all Student Data and Screening Data, including copies held by subprocessors, and will certify destruction in writing; copies in encrypted backups expire on the documented rotation, not to exceed ninety days, are never restored to production, and are certified as expired when that date passes. De-identified Data and Aggregate Data are not subject to this subsection.

5.7 Records of this Agreement

> **AFUHSD precedent:** ASU-Helios consortium thread (Mar 2026): the district could not locate its own executed DSA; a partner that supplies an indexed executed copy and a renewal reminder removes a real pain point. **Luke's experience:** AFUHSD's own agreement inventory lives in the SDPC registry and BoardDocs; most districts have nothing comparable for non-vendor partners.

CHSS will provide the District an executed copy of this Agreement and Appendix A within ten business days of signature, and written notice at least ninety days before this Agreement or Appendix A expires.

Section Six: Data Access and Sharing

> **James's MOU draft:** Keeps the current Section Six's purpose sentence and liaison block; replaces the "de-identified individual student data" framing, the element list, the cadence, and the delivery language. **Conversation:** Luke (10/26): the district's technical and privacy people must be at the table early, "so that they're not caught with their pants down six months later when they're like, okay, now send the data to Stand."

Successful implementation requires timely access to actionable data that allows School Teams, school leaders, the District, and CHSS to identify students needing support, monitor progress,

compare outcomes, and assess the effectiveness of supports.

6.1 District contacts and onboarding

> **Conversation:** 10/23 (James and Luke) and 10/26 (all): verbal yeses came from superintendents and heads of academics, not CTOs; James met one CTO so far. The contact designation and the onboarding call are the mechanism that forces the CTO/privacy conversation before data moves. **James's MOU draft:** The current draft already has a "District Data/IT Liaison" block; this subsection makes naming that person a dated obligation and adds the privacy contact.

The District designates, in Exhibit D-3 at the time it accepts a place in the Accelerator, (a) a technical contact responsible for the data feed, (b) a privacy contact (data privacy officer, technology director, or counsel) responsible for Appendix A, and (c) a program contact for each participating school, and will confirm or replace them within fifteen business days after this Agreement is executed. CHSS will schedule an onboarding call that includes the technical and privacy contacts before this Agreement is routed for signature, and no Student Data is transferred before execution.

6.2 Data provided by the District

> **James's MOU draft:** The current element list (demographics, course enrollment and master schedule, credits, course performance and GPA, attendance, behavior and discipline "as permitted," summer school, other agreed indicators) is kept, re-sorted into required and optional in Exhibit D-1. **Conversation:** Tara (10/19): course performance, GPA, credit accrual, attendance; behavior "we typically don't get." James (10/19): the three Synergy reports a school actually runs are GRD 401, GRD 402, and the MST transcript. **Emily's email:** "Right sizing our data request: what is the minimum practical dataset we should request initially versus additional data we might pursue later?" Required core is kept small; everything else is optional. **AFUHSD precedent:** In AFUHSD's feeder-district DSA (May 2025) the data team struck an element the district could not produce accurately. Expect district data teams to do the same; a short required list survives that review.

The District will provide the elements marked Required in Exhibit D-1 for each Cohort, and may provide the elements marked Optional at its discretion. The District will provide data as it exists in its student information system; CHSS will report apparent errors to the technical contact and will not alter source data.

6.3 Scope of students and years

> **Conversation:** James (10/23): "let's do it in ninth grade, but grow the dashboard each year after that. So when they become 10th graders, we continue importing their data." Luke: "it is an arbitrary difference" technically; the value is in following the cohort. **Drafting choice:** Written so a district that balks can strike the second sentence and keep a ninth-grade-only feed without touching anything else.

Student Data covers all ninth grade students at participating schools. For each Cohort, the District will continue to provide the Required elements for those students in subsequent school years through graduation or exit, for as long as this Agreement is in effect, so that on-track outcomes can be followed over time.

6.4 Student identifier

> **James's collateral:** "Records are matched using a consistent unique student identifier." **Emily's architecture:** The platform's identity-matching step lists district ID, state ID, and "probabilistic matching." A deterministic ID in every feed makes probabilistic matching unnecessary for linking. **Luke's experience:** Two de-identification methods used at AFUHSD (10/19

call): a deterministic transformation of the student ID, or a growing mapping table from hashed to random IDs. Either produces a stable pseudonymous identifier a district can send instead of its real ID. **af-dpa:** agents/operational-context.md: "Pseudonymous or 'anonymized' student-level rows can remain linkable student data, especially when the same student is tracked over time." The last sentence below says so, which keeps a pseudonymous feed inside the agreement's protections rather than outside them.

Each record will include the District's student identifier (and the state student identifier where available) so that records can be matched consistently across feeds and years. A District that prefers not to send its student identifier may instead send a stable pseudonymous identifier that it generates and maintains, provided the same identifier is used in every feed. Records carrying a pseudonymous identifier remain Student Data under this Agreement.

6.5 Delivery method and cadence

Emily's architecture: v1 of the CHSS data platform ingests periodic files (Excel, CSV, TXT) by SFTP or secure upload, "quarterly/semester or more frequent." No vendor API in v1. **Conversation:** Luke's ranking (10/19): SIS vendor feed direct to CHSS first, district SFTP second, Clever/ClassLink last ("this isn't OneRoster data"). Luke (10/23): a menu from "run these five reports and a Python cleanup script" up to a nightly automated export. **James's MOU draft:** The current draft's "within two weeks after the end of each marking period" survives only as the end-of-year and summer-school rule; weekly is the Year 1 standard because the coaching model needs Friday's data on Tuesday. **District lens:** "Is weekly delivery required, preferred, or only the Tier 1 target?" One rule now: weekly once live; Tier 2 is a dated interim exception with an approved cadence. Pending CHSS confirmation (Decisions, O15). **James's MOU draft:** The current Section Three already obligates the District to "make grades, attendance, and other agreed-upon key indicators available at least weekly." This subsection is how that happens.

The District will choose one of the delivery tiers in Exhibit D-2. The target for every District is Tier 1 (automated feed) before the feed goes live. Once the feed is live for Year 1, the District will provide updates weekly during the school year, and a final update within two weeks after the end of the school year and of summer school. A District that cannot yet automate may use Tier 2 (scheduled secure upload) as an interim arrangement, recorded in Exhibit D-3 with an approved cadence not less than monthly and a target date for Tier 1, with CHSS support to get there. [Cadence rule pending CHSS confirmation; Decisions O15.]

6.6 Changes affecting the feed

Luke's experience: Running district feeds to outside partners: SIS vendor changes, grading-scale changes, and term-structure changes are what break them. **James's MOU draft:** Extends the current Section Three notice obligation ("data-system changes that may affect implementation") with a lead time.

The District will notify CHSS at least thirty days before a change in student information system, grading scale, or term structure that would affect the feed.

6.7 Screeners

PPRA: Protection of Pupil Rights Amendment, 20 U.S.C. § 1232h: surveys funded or administered through a school that touch protected categories (including psychological problems and certain attitudes) require parental notice and, in some cases, opt-out or consent. A belonging screener can reach those categories. **Emily's email:** Navigator must "explicitly cover the Belonging and Skills screeners we administer, including the collection, storage, analysis, and use of student-level screening data." **James's MOU draft:** The current Section Three already obligates the District to "administer CHSS or comparable belonging and skills screeners." This subsection makes the District the approver and notice-giver, which is

where PPRA puts the responsibility. **af-dpa:** knowledge/law/ppra-cipa-other-federal.md, quoting the Department of Education's Student Privacy Policy Office letter of Aug 26, 2026: when schools "use behavioral health screeners that probe students' emotional or psychological states, they must ensure that written parental consent is obtained prior to administration," and "the opt-out provisions in PPRA do not apply as a way of securing parental consent." Arizona A.R.S. § 15-117 adds fourteen categories and seven days' advance notice. **State law:** Arizona A.R.S. § 15-104 requires prior written parental consent for mental health screening in schools, and § 15-117 exempts § 15-104 screenings from its separate survey regime. Whether the Belonging Screener is a mental health screening is a classification question for counsel, item by item. **District lens:** "I cannot approve 'notice, opt-out, or consent' without reviewing the actual instruments." The clause now makes collection contingent on the District's written authorization and certification, so the review happens before any student answers a question. **Luke's decision:** Tara classifies program need; counsel classifies consent (Decisions, O6). The decline sentence is new: Arizona districts cannot administer emotional-wellness surveys at all, so the Services must be able to run without the Belonging Screener. **District lens:** A California district technology and privacy lead (10/27 call): California districts run Panorama wellness surveys several times a year and now give parents notice on gender-identity items; some districts also cover third-party consent through pre-permission language in annual online registration. Arizona, by contrast, bars asking students how they feel. The same instrument is routine in one state and prohibited in another, which is why the District, not CHSS, decides.

The District will review the full content of the CHSS Belonging Screener and the Skills Screener, item by item, before either is administered, and will determine what parent notice, opt-out, or prior written consent is required by District policy, by the Protection of Pupil Rights Amendment (20 U.S.C. § 1232h), and by state law (in Arizona, A.R.S. §§ 15-104 and 15-117). CHSS will not open collection at a participating school until the District has authorized the instruments in writing and certified that any required notice has been given and any required consent is on file. The District administers the screeners through the School Team. CHSS will not add or change questions without the District's written approval and will provide each versioned instrument for that purpose. Where state law or District policy restricts or prohibits a screener's subject matter, the District may decline a screener in whole or in part, and the Services continue without it. Screening Data is Student Data for all purposes of this Agreement.

6.8 Navigator users

SDPC NDPA: Districts remain responsible for their own users' credentials and for prompt notice of role changes; the NDPA places account-management duties on the LEA for its staff. **Columbus City DSA:** District duties include "take reasonable precautions to secure usernames, passwords, and any other means of gaining access to the service."

The District will designate which School Team members receive Navigator logins and will notify CHSS within five business days when a user's role changes or ends. District users are responsible for safeguarding their credentials.

6.9 CHSS integration support

Conversation: Luke (10/26): "Let's send, Luke will have a conversation with your data nerds for two calls, set up a Python system that can clean and refine your data and send it via SFTP." James (10/26): "it's almost like another form of coaching we're going to offer." **Luke's experience:** Monitoring: a daily failure report is what makes an automated feed trustworthy; the district should never be the one to notice a missed transfer. **District lens:** A data manager's read of "two working sessions": "I still do not know whether support ends before the feed works." Support now runs to acceptance, with maintenance when the SIS, grading scale, or terms change. Cost is an open decision (O11).

CHSS will provide technical assistance to the District's technical contact to establish the data feed, including the file specification and data dictionary, SIS-specific report instructions where CHSS

has them, mapping of the District's exports to the specification, a cleanup script where needed, and working sessions until the feed passes the acceptance test in Exhibit D-3. After acceptance, CHSS will provide assistance when the District's student information system, grading scale, or term structure changes. CHSS will monitor the feed, notify the technical contact within one business day when a transfer fails or expected data is missing, and provide a validation report for each load that distinguishes rejected files, rejected rows, and warnings.

6.10 Timeline

> **Conversation:** Jonah (10/26): starting in January "gives us the four or five months of let's get this set up before students start." James (10/23): "when we come to them in April and say, hey, it's time to engineer this SIS integration." Winners announced Dec 15; Columbus City needs about three months for board approval. **James's MOU draft:** Year 0 is the readiness period; "data access and reporting setup" is listed among Year 0 activities. Year 1 is implementation. **District lens:** Counsel reads a December pilot next to a three-month board calendar and concludes data is being asked for before approval. The timeline now says what the cohort is actually committing to: readiness in Year 0, live data in Year 1. **Luke's decision:** No Student Data moves before signature; a spring test load is optional and follows signature; live data begins with Year 1 instruction (August 2027 for the January cohort). The December Navigator pilot is outside this Agreement (Decisions, O1).

No Student Data is transferred before this Agreement and Appendix A (or the NDPA) are executed. During Year 0 the District will name its contacts, elect its delivery tier, and complete the mapping and acceptance test in Exhibit D-3; a test load of current-year data may be made after execution to validate the feed. The feed goes live for the ninth grade Cohort no later than [the first day of Year 1 instruction], and the Parties will complete acceptance by [thirty days before that date].

District Data/IT Liaison: [TO BE COMPLETED] · **Privacy contact:** [TO BE COMPLETED]

Exhibit D-1: Data elements

> **James's MOU draft:** All elements from the current Section Six appear here; the change is the Required/Optional split. **James's collateral:** James's "only the data needed" list (student ID, name, grade level, course grades, attendance, discipline) with discipline moved to Optional. **Emily's architecture:** Input categories on the platform diagram: student information, grades, attendance, discipline, other optional (assessments, state tests, program participation). **Conversation:** Luke (10/19): attendance, discipline, EL, and IEP data "don't belong in rostering tools"; discipline is the element most likely to draw objections. **District lens:** A California district technology and privacy lead (10/27 call) ranks free or reduced-price meal status, special education status, and graduation date as "protected and then free-and-reduced-lunch protected," and recently refused a grant partner's request for meal data with the district attorney's backing; name, email, and ID are a lower tier. The sensitive elements are now labeled as such and never requested by default.

Element	Required / Optional	Notes
District student identifier (state identifier also requested)	Required	Stable across years; see 6.4
Student name (first, last)	Required	Visible to the School Team only; see 5.4

Element	Required / Optional	Notes
Grade level, school, enrollment status and dates	Required	Entry and exit dates support Cohort tracking
Course enrollments by term (course code, title, section)	Required	Teacher of record optional
Course marks by grading period and final marks	Required	Include grading scale or pass/fail flag
Credits attempted and earned by term	Required	Core of the on-track calculation
Cumulative GPA	Required	Weighted and unweighted where both exist
Attendance: daily absences and tardies; period absences where available	Required	Chronic absence computed by CHSS
Summer school enrollment, completion, credits, and outcomes	Optional	From the current draft
Demographics (race/ethnicity, gender, EL status)	Optional	For subgroup reporting at the District's election
IEP/504 status; economic status (free or reduced-price meals)	Optional, sensitive	Not needed for Navigator. Many districts treat these as their most protected categories and will decline; CHSS does not ask for them unless the District elects to provide them for subgroup reporting
Discipline (incidents, referrals, outcomes)	Optional	Not required for on-track
Assessments, state test scores, program participation	Optional	
Date of birth	Optional	Only where identifiers are unavailable for matching
Screening Data (Belonging, Skills)	Collected by CHSS under 6.7	

Exhibit D-2: Delivery tiers

Emily's architecture: Tier 1 and Tier 2 are the two inputs the v1 platform supports (SFTP; secure file upload). **Conversation:** Tier 3 reflects Luke's preferred route (10/19): "if you use one of the top five SIS, we have an API route built out with them where you don't even have to think about it." Listed because it is the best privacy posture (no files in the middle) even though v1 does not ingest it. **Luke's experience:** Tier 2 is the "least prepared district" path from 10/23: "here's the five reports you have to run every week, put them in this spot, and here's a little Python snippet that will clean them up."

Tier	How it works	Who does what	Cadence
Tier 1: Automated feed (target)	The District's SIS or data warehouse exports the specified files on a schedule and transfers them to CHSS by SFTP.	CHSS provides the specification, credentials, and setup support. The District schedules the job.	Nightly or weekly
Tier 2: Scheduled secure upload (interim)	District staff run the specified reports and upload them to the CHSS secure portal, using a CHSS-provided cleanup script where needed.	CHSS provides the report list for the District's SIS and the script. The District uploads on the approved cadence.	Approved interim cadence, not less than monthly, with a dated target for Tier 1
Tier 3: SIS vendor connection (where available)	The SIS vendor provides a read-only API or scheduled export directly to CHSS.	CHSS and the vendor configure it; the District authorizes it.	Nightly

Exhibit D-3: District elections and contacts

> **Drafting choice:** Collects every per-district choice in one place so the body of the agreement is identical for every district, which is what makes an Exhibit E general offer under the NDPA workable later.

Item	District election
Privacy instrument (5.2)	□ Appendix A only □ Appendix A plus state NDPA □ Appendix A plus NDPA Exhibit E acceptance
Coach access (5.4)	□ Option A (standing access) □ Option B (in-session view)
Delivery tier (6.5)	□ Tier 1 □ Tier 2 interim, cadence: [ ], Tier 1 target date: [ ] □ Tier 3
Cohort tracking beyond ninth grade (6.3)	□ Yes □ Ninth grade only
Optional elements provided (D-1)	[list]
Third parties approved to receive Student Data under Appendix A.4(f)	□ None □ [recipient, data shared]
Technical contact	[name, title, email, phone]
Privacy contact	[name, title, email, phone]
Program contact(s)	[name, school]

Onboarding milestones (January cohort)

When	What
Dec 15	Acceptance announced; the District names its technical, privacy, and program contacts as part of acceptance (6.1).

When	What
By mid-Jan	Onboarding call with the technical and privacy contacts; contacts confirmed.
Jan–Mar	Agreement and Appendix A (or NDPA) routed and executed, including board approval where required. Delivery tier elected; specification mapped. No Student Data moves yet.
After execution	Optional test load of current-year data; validation report; corrections.
By [30 days before Year 1 instruction]	Acceptance test passed: a full load of the Required elements, validated, with dashboards reviewed by the School Team.
First day of Year 1 instruction	Feed live for the ninth grade Cohort; weekly updates.

Acceptance test. The feed passes acceptance when a complete load of the Required elements in D-1 for all participating schools is received by the elected tier, validated with no rejected files, with rejected rows and warnings below thresholds agreed in writing, and with on-track indicators reviewed by the District's technical contact against the District's own figures.

Exhibit D-4: Directive for Disposition of Data

> **SDPC NDPA:** Modeled on NDPA Exhibit D, the one-page directive a district uses to order return or destruction without further notice. Districts that execute the NDPA use NDPA Exhibit D instead. **Luke's decision:** Districts that do not use the NDPA should still have a form, so a disposition request is a form and not a negotiation (Decisions, M4).

To be completed by the District and delivered to CHSS's privacy contact. CHSS will act within sixty days and certify completion in writing.

Field	Entry
District	[name]
Scope of Student Data	□ All Student Data and Screening Data held under this Agreement □ The following only: [schools, cohorts, elements, date range]
Action	□ Destroy □ Return in [format] and then destroy
Timing	□ As soon as practicable, not later than sixty days □ On [date], not later than sixty days after it
Exclusions acknowledged	De-identified Data and Aggregate Data retained under Section 5.5 and Appendix A.10
Certification requested	□ Written certificate of destruction signed by an officer of CHSS, listing systems and backup expiration date
Authorized by	[name, title, signature, date]

Conforming edits elsewhere in the Agreement

James's MOU draft: Section Three, District bullets 8 and 9, and Section Eight's insurance and liability paragraphs are the other places the current draft touches data. Section Eight disclaims consequential damages and caps liability at insurance proceeds. **af-dpa:** knowledge/practice/dpa-review-checklist.md: district practice is to "carve out data breach, confidentiality and indemnity obligations, or set a breach super-cap." The NDPA has no liability or indemnity clause of its own, so the main agreement's terms govern unless carved out. **District lens:** "You promise breach costs and substantial insurance, but I cannot tell whether the main agreement caps those obligations." The carve-out is drafted as a proposal with the amount left open (Decisions, O2). **District lens:** Auto-renewal is the first item on a California district privacy lead's checklist (10/27 call), because purchasing taught her to look for it; a data agreement that renews by silence is a finding in every district's review. Hence the renewal edit (Decisions, M19). **Columbus City DSA:** Cyber liability of at least $1,000,000 is a stated requirement; Section Eight currently promises only "reasonable liability insurance" and a certificate on request. **af-dpa:** knowledge/practice/dpa-review-checklist.md: "$1M for directory-only, $2M+ for SIS, assessment, special education or health data"; Beaverton requires $2,000,000 per claim and aggregate "when staff or student information is exchanged." Grades, attendance, and identifiers put CHSS in the $2M tier. Confirm current limits with Stand's finance lead before this number goes out.

- **Section Three, District agrees:** replace "Make grades, attendance, and other agreed-upon key indicators available at least weekly in a user-friendly dashboard or other accessible format" and "Provide CHSS and participating school teams with timely, actionable data ... in accordance with Sections Six and Seven" with a single bullet: "Provide Student Data as described in Section Six and Exhibit D-1, through the delivery tier elected in Exhibit D-3."
- **Section Three, CHSS agrees:** replace "Protect Confidential Information and use student data only as permitted by this Agreement and applicable law" with "Protect Student Data as provided in Section Five and Appendix A, and provide the integration support described in Section 6.9."
- **Section Eight:** add after the certificate-of-insurance sentence: "Organization maintains cyber liability insurance of not less than $2,000,000 per claim, as further described in Appendix A." [Limit pending Stand's certificate; Decisions O7.]
- **Section Eight, liability:** the disclaimer of consequential damages and the cap at "applicable liability insurance proceeds" must be reconciled with Appendix A. Proposed: "The limitations in this Section do not apply to Organization's obligations under Appendix A, Sections A.4, A.8, and A.10, or to either Party's breach of confidentiality, [or: and Organization's liability for those obligations is limited to $[X]]." [Open decision for Jonah and counsel; Decisions O2.]
- **Section Nine, Notices:** add the privacy contact from Exhibit D-3 as a required notice recipient for matters under Appendix A.
- **Section Two or Section Four, renewal:** add: "The data provisions of this Agreement and Appendix A do not renew automatically. Continuation of Student Data sharing beyond the Term requires a new written agreement signed by both Parties." Section Four already says no financial commitment survives Year 1; this makes the same true of the data.